

22STCV41038 22STCV41038

County: los-angeles

Division: Civil Law and Motion

Department: F46

Hearing date: 2026-08-27

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=CHA%2CF46%2C08%2F27%2F2026

Source SHA-256: f2ce9871f6bd19d2486d8b53f0ca6367ef44d6835b2ce91502c960a50d2d3794

Case Number: 22STCV41038 Hearing Date: August 27, 2026 Dept: F46

Dept. F-46

Hearing Date: August 27, 2026

Case Number: 22STCV41038

DEFENDANT LOS ANGELES COUNTY METROPOLITAN TRANSPORTATION
AUTHORITY'S MOTION FOR ATTORNEY'S FEES AND DEFENSE COSTS PURSUANT TO CODE OF
CIVIL PROCEDURE SECTION 1038

Motion filed on July 7, 2026.

MOVING PARTY: Defendant Los Angeles County Metropolitan
Transportation Authority

RESPONDING PARTIES: Plaintiffs David Ortiz and Yuko Ortiz

NOTICE: OK.

RELIEF REQUESTED: An award of \$48,170 in attorney's fees and
defense costs under Code of Civil Procedure section 1038.

RULING: Continued to October 1, 2026, at 8:30 a.m. in
Department F-46. The Court reserves ruling on the motion.

BACKGROUND/DISCUSSION

On December 30, 2022, Plaintiffs David Ortiz and Yuko Ortiz

(Plaintiffs) filed the Complaint against Defendant Los Angeles County Metropolitan Transportation Authority (Metro).

On June 2, 2026, the Court granted Metro's motion for summary judgment.

On June 4, 2026, Plaintiffs filed a request for reconsideration and an objection to Metro's proposed judgment. On July 6, 2026, the Court denied Plaintiffs' request for reconsideration, approved and signed Metro's proposed judgment, and directed the Clerk to enter judgment. Judgment was entered on July 16, 2026.

On July 7, 2026, Metro filed the present motion supported by the declaration of Eitan Yehoshua and exhibits.

On August 13, 2026, Plaintiffs filed an opposition supported by their joint declaration and exhibits. On August 20, 2026, Metro filed a reply and supplemental declaration. On August 21, 2026, Plaintiffs filed an objection to new matter raised in the reply and requested that the Court disregard the new matter or permit a supplemental response.

Metro seeks \$48,170, consisting of 197.10 hours of attorney time and \$398 in costs. (Yehoshua Decl. ¶ 12.) Counsel states that the hourly rates charged and time expended were reasonable and necessary and consistent with rates charged by attorneys of comparable experience in Los Angeles. (Id. ¶ 13.) The present showing does not provide sufficient detail for the Court to determine the reasonable and necessary amount of the requested defense costs.

The hearing is continued for limited supplemental briefing concerning the amount requested.

CONCLUSION

The hearing on Metro's motion is continued to October 1, 2026, at 8:30 a.m. in Department F-46. The Court reserves ruling on the motion.

No later than September 9, 2026, Metro shall file and serve a supplemental declaration and supporting exhibits, as appropriate, sufficient to permit the Court to determine the reasonable and necessary amount of the requested defense costs, including the timekeepers and applicable hourly rates,

the hours expended, the general nature of the work performed, and an itemization of the claimed \$398 in costs. Metro may redact privileged information as appropriate.

Plaintiffs may file and serve a response limited to the amount of the requested defense costs no later than September 18, 2026.

Metro may file and serve a reply limited to that issue no later than September 24, 2026.

No further briefing concerning entitlement or any other issue may be filed without leave of Court.